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**AMENDMENT TO RESTRICTIONS AND PARTIAL TRANSFER AND ASSIGNMENT  
OF RIGHTS AND FUNCTIONS OF THE DEVELOPER OF  
COLUMBIA LAKES SUBDIVISIONS**

THE STATE OF TEXAS     §  
                                      §  
COUNTY OF BRAZORIA   §

KNOW ALL MEN BY THESE PRESENTS:

This Amendment to Restrictions and Partial Transfer and Assignment of Rights and Functions of the Developer of Columbia Lakes Subdivisions executed on this 19<sup>th</sup> day of August, 2005, by CLT Properties, Inc., a Texas corporation and Columbia Lakes LLC, a Texas limited liability company.

**W I T N E S S E T H:**

WHEREAS, Columbia Lakes is a subdivision situated in Brazoria County, Texas, according to the plat thereof recorded in Volume 14, Page 37, Volume 14, Page 53, Volume 14, Page 65 and Volume 15, Page 3 of the Plat Records of Brazoria County, Texas (the "Columbia Lakes Subdivision");

WHEREAS, Columbia Lakes Subdivision, Sections 1, 2, 3 and 4 are subject to certain restrictions according to those certain Restrictions dated July 18, 1972, and recorded in Volume 1128, Page 911 of the Deed Records of Brazoria County, Texas, and amendments thereto recorded in Volume 1131, Page 678, Volume 1137, Page 943 and Volume 1165, Page 945 of the Deed records of Brazoria County, Texas, as amended (the "Restrictions");

WHEREAS, CLT Properties, Inc. is the Developer of Columbia Lakes Subdivision as such term is defined in the Restrictions pursuant to the certain Transfer and Assignment of All Rights and Functions of the Developer of Columbia Lakes Subdivision, Including the Maintenance Fund to CLT Properties, Inc., dated December 16, 1988 and recorded in Volume 625, Page 720 of the Official Records of Brazoria County, Texas;

WHEREAS, CLT Properties, Inc. wishes to amend the Restrictions so as to assign all of its right, title, interest, equity and estate as Developer with respect to certain real estate within Columbia Lakes Subdivision listed in Exhibit A attached hereto (the "Property") unto Columbia Lakes, LLC, a Texas limited liability company; and

WHEREAS, Columbia Lakes, LLC wishes to accept such assignment of all of the right, title, interest, equity and estate of CLT Properties, Inc. as Developer with respect to the Property.

NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS, that CLT Properties, Inc. does hereby adopt and promulgate the following amendment to the Restrictions:

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1. CLT Properties, Inc. hereby transfers and assigns all of its right, title, interest, equity and estate as Developer in the Restrictions (including, but not limited to the Architectural Control Committee and Columbia Lakes Maintenance Fund Committee) with respect to the Property unto Columbia Lakes, LLC, a Texas limited liability company. CLT Properties, Inc. hereby expressly reserves and excepts from such assignment for itself and its successors and assigns all the right, title, interest, equity and estate as Developer in the Restrictions with respect to remainder of all property now or hereafter owned by CLT Properties, Inc. in Columbia Lakes Subdivision.

2. CLT Properties, Inc. hereby transfers and assigns and delivers to Columbia Lakes, LLC the current balance of the Maintenance Fund, which monies are delivered herewith to Columbia Lakes, LLC in trust for the benefit of the lot owners of Columbia Lakes Subdivision and beneficiaries of the Maintenance Fund; all claims, actions, demands, judgments and rights of recovery pertaining to or connected with either the Maintenance Fund or payments to the Maintenance Fund; the liens and receivables on all the lots in Columbia Lakes Subdivision for delinquent payments to the Maintenance Fund.

3. Columbia Lakes, LLC hereby accepts from CLT Properties, Inc. and agrees to perform all of the rights, obligations and functions of the Developer for the Property and the Architectural Control Committee and Columbia Lakes Maintenance Fund Committee.

4. CLT Properties, Inc. agrees to indemnify and hold Columbia Lakes, LLC harmless of and from any and all liabilities, claims, demands and expenses, of any kind or nature (except those items which by this Agreement specifically become the obligation of Columbia Lakes, LLC) arising or occurring prior to the date hereof which are in any way related to the conversion, misuse or misappropriation of the Maintenance Fund, and all expenses related thereto; including, without limitation, court costs and reasonable attorney's fees.

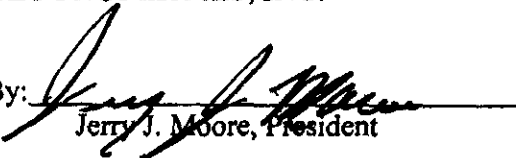
5. Columbia Lakes, LLC agrees to indemnify and hold CLT Properties, Inc. harmless of and from any and all liabilities, claims, demands and expenses of any kind or nature (except those items which by this Agreement specifically remain the obligation of CLT Properties, Inc.) arising or occurring subsequent to the date hereof which are in any way related to the conversion, misuse or misappropriation of the Maintenance Fund, and all expenses related thereto; including, without limitation, court costs and reasonable attorney's fees.

6. CLT Properties, Inc. hereby transfers and assigns to Columbia Lakes, LLC certain rights reserved for itself and its successors and assigns under a certain Declaration of Easement of even date herewith with respect to the Property, provided, however, CLT Properties, Inc. expressly reserves for itself and its successors and assigns said rights with respect to certain tracts and parcels of land comprising a part of Columbia Lakes Subdivision that CLT Properties, Inc. will continue to own hereafter.

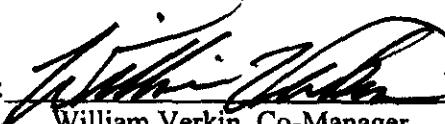
[Signature Page to Follow]

EXECUTED this 19<sup>th</sup> day of August, 2005.

**CLT PROPERTIES, INC.**

By:   
Jerry J. Moore, President

**COLUMBIA LAKES, LLC**

By:   
William Verkin, Co-Manager

By:   
James R. Scarborough, Co-Manager

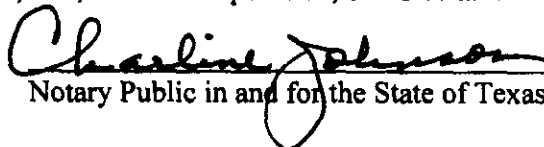
THE STATE OF TEXAS

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COUNTY OF HARRIS

This instrument was acknowledged before me on this the 22 day of August, 2005, by Jerry J. Moore, President of CLT Properties, Inc., a Texas corporation, on its behalf.



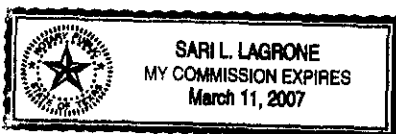
  
Notary Public in and for the State of Texas

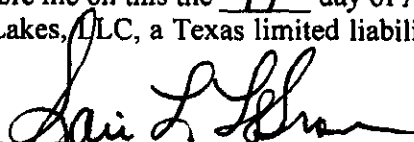
THE STATE OF TEXAS

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COUNTY OF HARRIS

This instrument was acknowledged before me on this the 19 day of August, 2005, by William Verkin, a Co-Manager of Columbia Lakes, LLC, a Texas limited liability company, on its behalf.



  
Notary Public in and for the State of Texas

THE STATE OF TEXAS

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COUNTY OF HARRIS

This instrument was acknowledged before me on this the 9 day of August, 2005, by James R. Scarborough, a Co-Manager of Columbia Lakes, LLC, a Texas limited liability company, on its behalf.

*Sari L. Lagrone*

Notary Public in and for the State of Texas



*AFTER Recording:*

Return to:

Charline Johnson

✓ CHARTER TITLE COMPANY

4265 San Felipe, Suite 350

Houston, TX 77027

1038000140

## Exhibit A

### Tract 1:

Lots Two (2), Seventy-eight (78) of Block One (1); Lot Four (4) in Block Two (2); Lots Twenty-two (22), Thirty-three (33) in Block Three (3); Lots Two (2), Five (5), Six (6) in Block Seven (7); Lots Four (4), Seven (7), Eight (8), Nine (9), Ten (10), Fifteen (15), Seventeen (17) in Block Eight (8); Lots Five (5), Seven (7), Nine (9), Twelve (12), Thirteen (13), Seventeen (17), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-three (23), Twenty-four (24), Twenty-five (25), Twenty-six (26), Twenty-nine (29), Thirty-one (31), Thirty-two (32), Thirty-three (33), Thirty-six (36) and Forty (40) in Block Eleven (11) of Columbia Lakes, Section One (1), a subdivision according to the map or plat thereof recorded in Volume 14, Page 37, Plat Records, Brazoria County, Texas.

### Tract 2:

Lots One (1), Two (2), Three (3), Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Thirteen (13), Fourteen (14), Fifteen (15), Sixteen (16), Seventeen (17), Eighteen (18), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-five (25), Twenty-six (26), Twenty-seven (27), Twenty-eight (28), Twenty-nine (29), Thirty (30), Thirty-two (32), Thirty-four (34), Thirty-five (35), Thirty-six (36), Thirty-seven (37), Thirty-eight (38), Thirty-nine (39), Forty (40), Forty-one (41), Forty-two (42), Forty-three (43), Fifty-two (52), Fifty-three (53), Fifty-six (56), Fifty-seven (57), Fifty-eight (58) in Block Thirteen (13); Lots Five (5), Fourteen (14), Fifteen (15) in Block Fourteen (14); Lot Twelve (12), Twenty-seven (27) in Block Fifteen (15); Lots Fifty (50), Fifty-one (51), Fifty-two (52), Fifty-five (55), Sixty (60), Sixty-three (63), Sixty-four (64) in Block Sixteen (16); Lots Nine (9), Ten (10), in Block Twenty-one (21); Lots Seven (7), Eight (8), Eleven (11), Fourteen (14), Eighteen (18), Twenty (20), Twenty-one (21), Twenty-four (24), Twenty-five (25), Twenty-six (26), Twenty-seven (27), Thirty (30), Thirty-one (31), Thirty-two (32), Thirty-four (34), Thirty-six (36), Forty-one (41), Forty-five (45), Forty-six (46) in Block Twenty-two (22); Lot Five (5) in Block Twenty-three (23); Lots One (1), Two (2), Four (4), Six (6), Seven (7), Eight (8), Ten (10) in Block Twenty-four (24); Lots Six (6), Eleven (11), Eighteen (18), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-eight (28) in Block Twenty-five (25) of Columbia Lakes, Section Two (2), a subdivision according to the map or plat thereof recorded in Volume 14, Page 53, Plat Records, Brazoria County, Texas.

### Tract 3:

Lots Thirteen (13), Eighteen (18), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Twenty-four (24), Twenty-six (26), Twenty-seven (27), Thirty-three (33), Thirty-four (34), Thirty-six (36), Thirty-nine (39), Forty-six (46), Forty-seven (47), Forty-eight (48), Forty-nine (49), Fifty (50), Fifty-four (54) in Block Twenty-four (24); Lot Twenty-five (25) in Block Twenty-six (26); Lots Four (4), Six (6), Nine (9), Ten (10) in Block Twenty-seven (27); Lots Thirty-three (33), Thirty-four (34), Thirty-five (35), Thirty-six (36), Thirty-seven (37), Thirty-eight (38), Thirty-nine (39), Forty (40), Forty-one (41), Forty-two (42), Forty-three (43), Forty-four (44), Forty-five (45), Forty-six (46), Forty-seven (47), Forty-eight (48), Forty-nine (49), Fifty (50), Fifty-one (51), Sixty-two (62) in Block Twenty-eight (28); Lots One (1), Two (2), Three (3), Four (4), Five (5), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Thirteen (13), Fourteen (14), Fifteen (15), Sixteen (16), Seventeen (17), Eighteen (18), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Twenty-four (24), Twenty-five (25), Twenty-six (26), Twenty-seven (27), Twenty-eight (28), Twenty-nine (29), Thirty (30), Thirty-one (31), Thirty-two (32), Thirty-three (33), Thirty-four (34), Thirty-five (35), Thirty-six (36), Forty-five (45), Forty-six (46), Fifty (50) in Block Twenty-nine (29); Lots One (1), Two (2), Three (3), Four (4), Five (5), Seven (7), Eight (8), Nine (9), Eleven (11), Twelve (12), Thirteen (13) in Block Thirty (30); Lots One (1), Two (2), Three (3), Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Thirteen (13), Fourteen (14), Seventeen (17), Eighteen (18), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Twenty-seven (27), Twenty-nine (29), Thirty-two (32), Thirty-four (34), Thirty-five (35), Thirty-six (36), Thirty-eight (38), Thirty-nine (39), Forty (40), Forty-two (42), Forty-four (44), Forty-five (45),

Forty-six (46), Forty-seven (47), Forty-nine (49), Fifty (50), Fifty-one (51), Fifty-two (52), Fifty-three (53), Fifty-six (56), Fifty-seven (57), Fifty-eight (58), Fifty-nine (59), Sixty (60), Sixty-one (61), Sixty-two (62), Sixty-three (63), Sixty-six (66), Sixty-seven (67), Sixty-eight (68), Sixty-nine (69), Seventy (70), Seventy-one (71), Seventy-three (73), Seventy-four (74), Seventy-five (75), Seventy-six (76), Seventy-seven (77), Seventy-eight (78), Seventy-nine (79), Eighty (80), Eighty-one (81), Eighty-two (82), Eighty-three (83), Eighty-four (84), Eighty-five (85), Eighty-six (86), Eighty-seven (87), Eighty-eight (88), Eighty-nine (89), Ninety (90), Ninety-one (91), Ninety-two (92), Ninety-three (93), Ninety-four (94), Ninety-five (95), Ninety-six (96), Ninety-seven (97), Ninety-eight (98), Ninety-nine (99), One Hundred (100), One Hundred One (101), One Hundred Two (102), One Hundred Three (103) in Block Thirty-one (31); Lots One (1), Two (2), Three (3), Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11) in Block Thirty-two (32); Lots One (1), Two (2), Eight (8), Nine (9), Fifteen (15), Twenty-one (21), Twenty-three (23), Twenty-four (24), Twenty-five (25), Twenty-six (26), Twenty-seven (27) in Block Thirty-three (33); Lots One (1), Two (2), Three (3), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Thirteen (13), Fourteen (14), Fifteen (15), Eighteen (18), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Twenty-four (24), Twenty-five (25), Twenty-six (26) in Block Thirty-four (34); Lots Two (2), Three (3), Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Sixteen (16), Seventeen (17), Eighteen (18), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Twenty-four (24), Twenty-five (25), Twenty-six (26), Twenty-seven (27), Twenty-eight (28), Twenty-nine (29), Thirty (30) in Block Thirty-five (35) in Columbia Lakes, Section Three (3), a subdivision according to the map or plat thereof recorded in Volume 14, Page 65, Plat Records, Brazoria County, Texas.

Tract 4:

Lot Thirty-five (35) in Block Twenty-three (23); Lots Three (3), Forty-three (43), Fifty-one (51) in Block Thirty-six (36); Lots Three (3), Six (6) in Block Thirty-seven (37); Lots Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Fifteen (15), Sixteen (16), Twenty-four (24), Twenty-five (25), Twenty-seven (27), Twenty-nine (29), Thirty-two (32), Thirty-three (33), Thirty-four (34), Thirty-seven (37), Thirty-eight (38), Thirty-nine (39), Forty (40), Forty-one (41), Forty-two (42), Forty-three (43), Forty-four (44), Forty-five (45), Forty-six (46) in Block Thirty-eight (38); Lots Two (2), Five (5), Six (6), Seven (7), Eight (8), Eleven (11) in Block Thirty-nine (39); Lots Two (2), Three (3), Four (4), Five (5), Six (6), Seven (7), Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Thirteen (13), Fourteen (14), Fifteen (15), Sixteen (16), Seventeen (17), Eighteen (18), Nineteen (19) in Block Forty (40); Lots Eight (8), Nine (9), Ten (10), Eleven (11), Twelve (12), Thirteen (13), Fourteen (14), Nineteen (19), Twenty (20), Twenty-one (21), Twenty-two (22), Twenty-three (23), Thirty-seven (37), Thirty-eight (38) in Block Forty-one (41); Lot Twenty-one (21) in Block Forty-two (42); Lot Sixteen (16) in Block Forty-three (43) of Columbia Lakes, Section Four (4), a subdivision according to the map or plat thereof recorded in Volume 15, Page 3, Plat Records, Brazoria County, Texas.

Tract 5:

0.165 acre, more or less, out of Reserve "D", of Columbia Lakes, Section Two, a subdivision according to the map or plat thereof recorded in Volume 14, Page 53, Map Records, Brazoria County, Texas, in the Martin Varner Survey, Abstract 133, Brazoria County, Texas, said 0.165 acre tract being more particularly described as follows:

Commencing at the southeasterly corner of Reserve "D", said point being in the northerly right of way line of Edgewater Drive (60 feet wide) and the westerly right of way line of Lakewood Drive (60 feet wide);

Thence S 59° 01' 57" W, along the southerly line of Reserve "D" and the northerly right of way line of Edgewater Drive, a distance of 56.08 feet to a 5/8 inch iron rod for the Place of Beginning;

Thence S 59° 01' 57" W, along the southerly line of Reserve "D" and the northerly right of way line of Edgewater Drive, a distance of 93.32 feet to an "X" in concrete for corner;

Thence N 30° 58' 03" W, a distance of 77.25 feet to a 5/8 inch iron rod for corner;

Thence N 59° 01' 57" E, a distance of 93.32 feet to a 5/8 inch iron rod for corner;

Thence S 30° 58' 03" E, a distance of 77.25 feet to the Place of Beginning and containing 0/165 acre of land, more or less.

**Tract 6:**

5.822 acres, more or less, out of Reserve "C", of Columbia Lakes, Section Three, a subdivision according to the map or plat thereof recorded in Volume 14, Page 65, Map Records, Brazoria County, Texas, in the Martin Varner Survey, Abstract 133, Brazoria County, Texas, said 5.822 acre tract being more particularly described as follows:

Beginning at a 5/8 inch iron rod in the northeasterly corner of Reserve "C", said point being in the southerly line of a 120 foot wide drainage easement shown on the plat of Columbia Lakes, Section Three and the common northerly corner of Lots 10 and 11, Block 32 of said Columbia Lakes, Section Three;

Thence S 61° 27' 19" W, along the common line of Reserve "C" and Block 32, a distance of 241.56 feet to a 5/8 inch iron rod for angle point;

Thence S 62° 10' 45" W, continuing along the common line of Reserve "C" and Block 32, a distance of 725.40 feet to a 5/8 inch iron rod for corner, said point being the most southerly southwest corner of Reserve "C" and being the northeasterly corner of Lot 1, Block 30 of Columbia Lakes, Section Three, said point being the easterly line of Varner Hogg State Park, described in instrument recorded in Volume 674, Page 101, Deed Records, Brazoria County, Texas;

Thence N 29° 03' 08" W, at a distance of 101.74 feet passing a 5/8 inch iron rod for an interior corner of Reserve "C", same being the northeasterly corner of the Varner Hogg State Park, and continuing for a total distance of 522.40 feet to a 5/8 inch iron rod, said point being in the common line of Reserve "C" and the aforementioned 120 foot drainage easement;

Thence S 89° 51' 39" E, along the common line of Reserve "C" and the 120 foot drainage easement, a distance of 1107.43 feet to the Place of Beginning and containing 5.822 acres of land, more or less.

Doc# 2005049586  
# Pages 7  
08/25/2005 2:50PM  
Official Records of  
BRAZORIA COUNTY  
JOYCE HUDMAN  
COUNTY CLERK  
Fees \$25.00

*Joyce Hudman*